

24NNCV06547 24NNCV06547

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-09-18

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=BUR%2CB%2C09%2F18%2F2026

Source SHA-256: af3cfa0008f08ed48c2de76eccfa5f71e2e6574b71536895a877db5d3557cbe1

Case Number: 24NNCV06547 Hearing Date: September 18, 2026 Dept: B

Hon. Victor Avila, Dept B

MOTION FOR SANCTIONS

Hearing Date: 9/18/26

CASE NO.: 24NNCV06547

CASE NAME: Griffard vs. Comfort Care Dental, Inc., et al.

Moving Party: Plaintiff Anna Griffard

Responding Party: Defendants Comfort Care Dental, Inc. and Tom Varujan
Shanakian, D.D.S.

Notice: Sufficient

Ruling: DENY.

NOTICE

The Court is not requesting oral argument on this matter/motion. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is requested and ANY PARTY SEEKING ARGUMENT SHOULD NOTIFY ALL OTHER PARTIES AND THE COURT BY 3:30 P.M. ON THE COURT DAY BEFORE THE HEARING of the party's intention to argue as to this matter/motion. The tentative ruling will

become the ruling of the court if no argument is received. Notice may be given either by email at BurDeptB@LACourt.org or by telephone at (818) 260-8422.

Parties must appear on all other matters scheduled for this case.

BACKGROUND

This is a dental malpractice case. On December 16, 2024, plaintiff Anna Griffard, in pro per (Plaintiff), filed a Complaint against defendants Comfort Care Dental, Inc. and Dr. Tom Varujan Shanakian, D.D.S. (collectively, Defendants) as well as Dr. Robert Tingilian, D.D.S. On November 20, 2025, Plaintiff filed a Third Amended Complaint (TAC) alleging six causes of action.

On August 7, 2026, Plaintiff filed the instant motion for sanctions. On September 4, 2026, Defendants filed an opposition. On September 8, 2026, Plaintiff filed a reply.

LEGAL

STANDARD

Code of Civil Procedure section 128.5, which states that “[a] trial court may order a party, the party’s attorney, or both, to pay the reasonable expenses, including attorney’s fees, incurred by another party as a result of actions or tactics, made in bad faith, that are frivolous or solely intended to cause unnecessary delay. (Code Civ. Proc., § 128.5(a).) Pursuant to section 128.5(f) sanctions made be ordered. (Code Civ. Proc., § 128.5(f).)

DISCUSSION

Plaintiff moves the Court for an order imposing sanctions and/or preservation of evidence from a “litigation-related cybersecurity incident” that occurred with defense counsel. (Mot., p. 3.) Plaintiff argues that on July 28, 2026, she received what appeared to be a routine Zoom link from Defendants’ counsel. (Ibid.) Plaintiff argues that her security software notified her that the link was malicious, she immediately notified defense counsel but did not receive an explanation for how the link originated from the firm’s office. (Ibid.) Plaintiff argues that this is litigation misconduct, and the Court is authorized to protect the integrity

of judicial proceedings, preserve evidence, conduct an inquiry, and subsequently impose sanctions. (Mot., pp. 8-10.) However, Plaintiff indicates following the procedures set for imposition of sanctions pursuant to section 128.5(f) would risk losing electronically stored information related to the cybersecurity incident and nonetheless may not ordinarily or ultimately govern sanctions. (Mot., pp. 11-12.)

In opposition,

Defendants argue that Plaintiff's motion is meritless, frivolous, and a waste of judicial resources. (Opp., p. 3.) Defendants argue that their secretary Lyn Davis' email was hacked, and this has been a common occurrence among Los Angeles Law firms as of late. (Ibid.) Defendants argue that the head of IT at the firm, Behar | Gibbs | Savage | Paulson discovered the email was hacked on July 28, 2026. (Opp., p. 4.) Further, Defendants argue that Plaintiff has not made a showing that this email was sent in bad faith or maliciously or established grounds for sanctions. (Ibid.) Defendants reiterate that this was a case of email hacking and does not constitute a bad faith tactic or action (Opp., pp. 4-5.) Lastly, Defendants argue that Plaintiff cites no law requiring preservation of electronic matter, especially that which is not relevant to this dental malpractice case. (Opp., p. 5.)

In reply,

Plaintiff reiterates wanting evidence and testimony surrounding the alleged cybersecurity hack. (Reply, p. 3.) Further, Plaintiff argues that Defendants' opposition does not address their concerns. (Reply, pp. 3-4.) Plaintiff demands preservation of the electronic evidence surrounding this incident and argues that Defendants offer no proof to support the assertion that it was simply a hack. (Reply, pp. 8-9.)

Section 128.5

defines "actions or tactics" as the "making or opposing of motions or the filing and service of a complaint, cross-complaint, answer, or other responsive pleading". (Code Civ. Proc., § 128.5(b).) Here, the alleged bad faith tactic or conduct is a suspicious email sent by Defendants' firm. Defendants maintain that this was a cybersecurity hack. (Davis Decl., ¶ 2.) Plaintiff seemingly accepts this explanation but demands production of evidence to prove this was a hack. (Griffard Decl., ¶¶ 15, 17.) Nonetheless, Plaintiff has not shown bad faith actions or tactics authorizing imposition of sanctions under section 128.5(f). The disputed conduct is not a motion or pleading.

Accordingly, the
motion for sanctions is DENIED.

CONCLUSION
AND ORDER

Plaintiff Anna
Griffard's motion for sanctions is DENIED.

MOVING PARTY
shall
provide notice.

MOTION FOR SANCTIONS; MOTION FOR TERMINATING SANCTIONS

Hearing Date: 9/18/26

CASE NO.: 24NNCV06547

CASE NAME: Griffard vs. Comfort Care Dental, Inc., et al.

Moving Party: Plaintiff Anna Griffard

Responding Party: Defendants Comfort Care Dental, Inc., Tom Varujan
Shanakian, D.D.S., and Dr. Robert Tingilian

Notice: Sufficient

Ruling: DENY.

BACKGROUND

This is a dental malpractice case. On December
16, 2024, plaintiff Anna Griffard, in pro per (Plaintiff), filed a
Complaint against defendants Comfort Care Dental, Inc. and Dr. Tom Varujan
Shanakian, D.D.S. (collectively, Defendants) as well as Dr. Robert Tingilian,
D.D.S. (Defendant Tingilian). On November 20, 2025, Plaintiff filed a Third
Amended Complaint (TAC) alleging six causes of action.

On August 7, 2026, Plaintiff filed the

instant motion for sanctions (Res ID: 1402). On September 4, 2026, Defendants filed an opposition. On September 8, 2026, Plaintiff filed a reply.

On August 10, 2026, Plaintiff filed the instant motion for terminating sanctions (Res ID: 0665). On September 4, 2026, Defendants filed an opposition. On September 4, 2026, Defendant Tingilian filed an opposition. On September 8, 2026, Plaintiff filed a reply.

LEGAL STANDARD

Code of Civil Procedure section 128.5, which states that “[a] trial court may order a party, the party’s attorney, or both, to pay the reasonable expenses, including attorney’s fees, incurred by another party as a result of actions or tactics, made in bad faith, that are frivolous or solely intended to cause unnecessary delay. (Code Civ. Proc., § 128.5(a).) Pursuant to section 128.5(f) sanctions made be ordered. (Code Civ. Proc., § 128.5(f).)

DISCUSSION

Plaintiff moves the Court for an order imposing sanctions and/or preservation of evidence from a “litigation-related cybersecurity incident” that occurred with defense counsel. (Mot., p. 3.) Plaintiff argues that on July 28, 2026, she received what appeared to be a routine Zoom link from Defendants’ counsel. (Ibid.) Plaintiff argues that her security software notified her that the link was malicious, she immediately notified defense counsel but did not receive an explanation for how the link originated from the firm’s office. (Ibid.) Plaintiff argues that this is litigation misconduct, and the Court is authorized to protect the integrity of judicial proceedings, preserve evidence, conduct an inquiry, and subsequently impose sanctions. (Mot., pp. 8-10.) However, Plaintiff indicates following the procedures set for imposition of sanctions pursuant to section 128.5(f) would risk losing electronically stored information related to the cybersecurity incident and nonetheless may not ordinarily or ultimately govern sanctions. (Mot., pp. 11-12.)

In a subsequent motion, Plaintiff moves the court to impose terminating sanctions for the same conduct. (Mot. Term. Sanctions, p. 2.) Plaintiff cites the same statutory law

as the concurrent motion for sanctions. (Ibid.) Plaintiff reiterates a desire for preservation of electronic evidence associated with the alleged hacking. (Mot. Term. Sanctions, p 8.) Plaintiff argues that this communication is a deliberate misuse of electronic systems and amounts to litigation misconduct which has been recognized by several courts. (Mot. Term. Sanctions, pp. 9-11.) Plaintiff argues that this misconduct must warrant terminating sanctions because no lesser sanction can restore the integrity of the judicial process. (Mot. Term. Sanctions, p. 13.)

In opposition,

Defendants argue that Plaintiff's motions are meritless, frivolous, and a waste of judicial resources. (Opp., p. 3; Opp. Term. Sanctions, p. 3.) Defendants argue that their secretary Lyn Davis' email was hacked, and this has been a common occurrence among Los Angeles Law firms as of late. (Ibid.) Defendants argue that the head of IT at the firm, Behar | Gibbs | Savage | Paulson discovered the email was hacked on July 28, 2026. (Opp., p. 4; Opp. Term. Sanctions, p. 4.) Further, Defendants argue that Plaintiff has not made a showing that this email was sent in bad faith or maliciously or established grounds for sanctions. (Ibid.) Defendants reiterate that this was a case of email hacking and does not constitute a bad faith tactic or action (Opp., pp. 4-5 Opp. Term. Sanctions, pp. 4-5.) Lastly, Defendants argue that Plaintiff cites no law requiring preservation of electronic matter, especially that which is not relevant to this dental malpractice case. (Opp., p. 5; Opp. Term. Sanctions, p. 5.)

Defendant

Tingilian filed an opposition to Plaintiff's motion for terminating sanctions out of an abundance of caution, to argue that Defendant Tingilian was not involved in any alleged misconduct. (Tingilian Opp., p. 2.) Defendant Tingilian also joins in arguments made by Defendants. (Ibid.)

In reply to the

motion for sanctions, Plaintiff reiterates wanting evidence and testimony surrounding the alleged cybersecurity hack. (Reply, p. 3.) Further, Plaintiff argues that Defendants' opposition does not address their concerns. (Reply, pp. 3-4.) Plaintiff demands preservation of the electronic evidence surrounding this incident and argues that Defendants offer no proof to support the assertion that it was simply a hack. (Reply, pp. 8-9.) In reply to the motion for terminating sanctions, Plaintiff directly addresses Defendant Tingilian's opposition arguing that the motion was not directed at him in the first place,

and his opposition was unnecessary. (Reply Term. Sanctions, pp. 2-4.)

Section 128.5

defines “actions or tactics” as the “making or opposing of motions or the filing and service of a complaint, cross-complaint, answer, or other responsive pleading”. (Code Civ. Proc., § 128.5(b).) Here, the alleged bad faith tactic or conduct is a suspicious email sent by Defendants’ firm. Defendants maintain that this was a cybersecurity hack. (Davis Decl., ¶ 2.) Plaintiff seemingly accepts this explanation but demands production of evidence to prove this was a hack. (Griffard Decl., ¶¶ 15, 17.) Nonetheless, Plaintiff has not shown bad faith actions or tactics authorizing imposition of sanctions under section 128.5(f). The disputed conduct is not a motion or pleading.

Accordingly, the
motion for sanctions is DENIED.

CONCLUSION AND ORDER

Plaintiff Anna
Griffard’s motion for sanctions is DENIED.

Plaintiff’s
motion for terminating sanctions is DENIED.

MOVING PARTY
shall
provide notice.